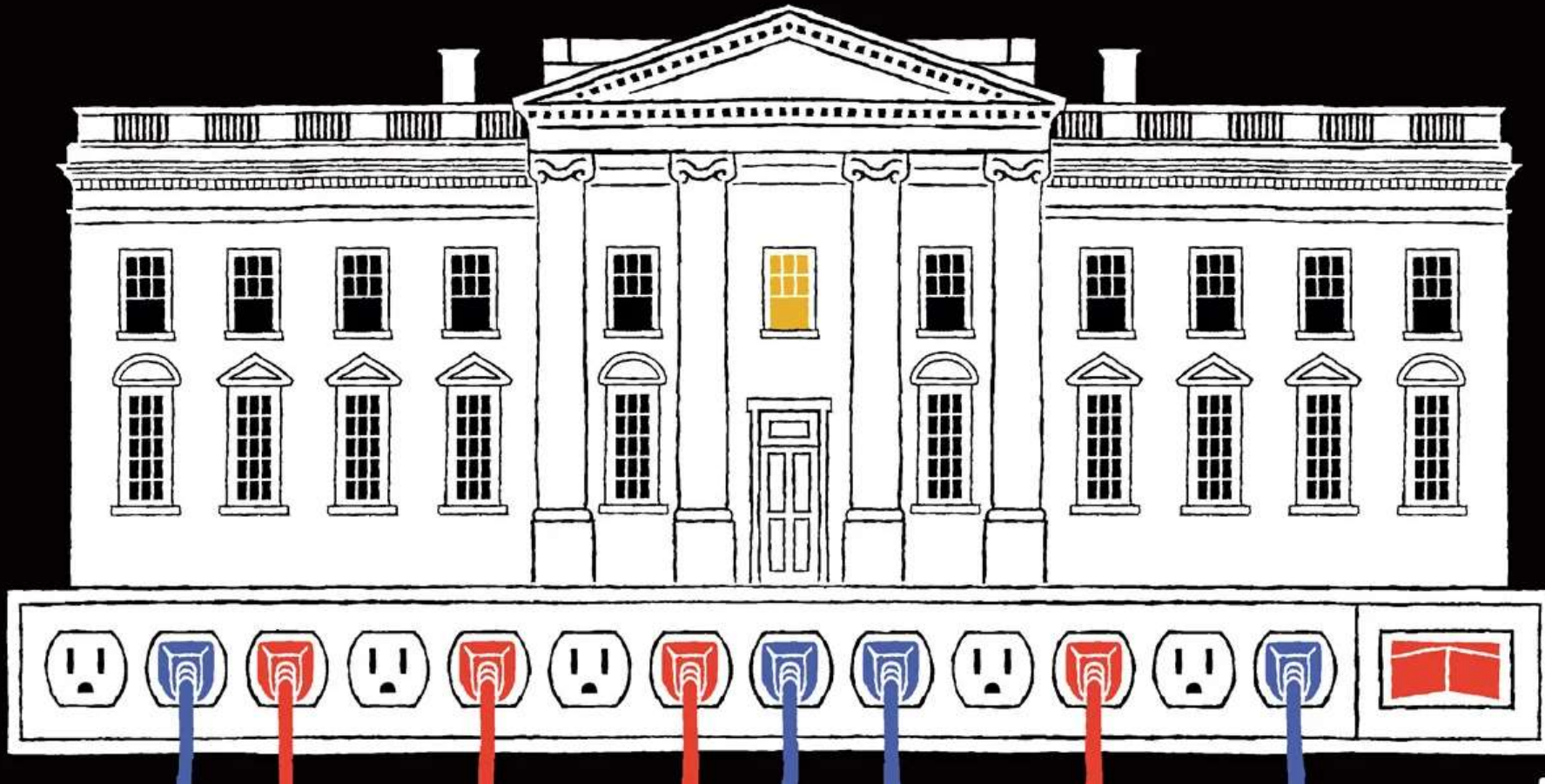


Introduction to the Legal System II

Presidential Executive



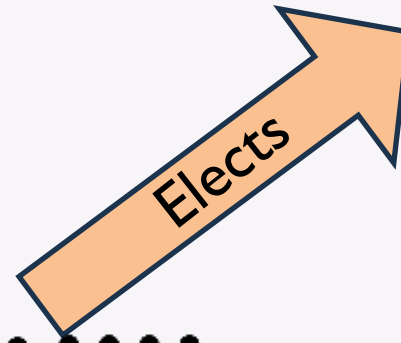
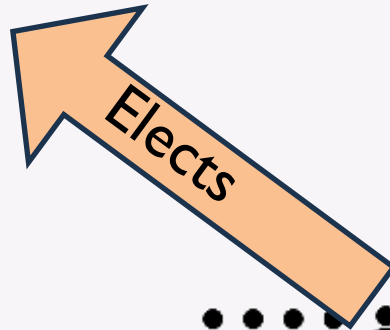
Presidential Executive

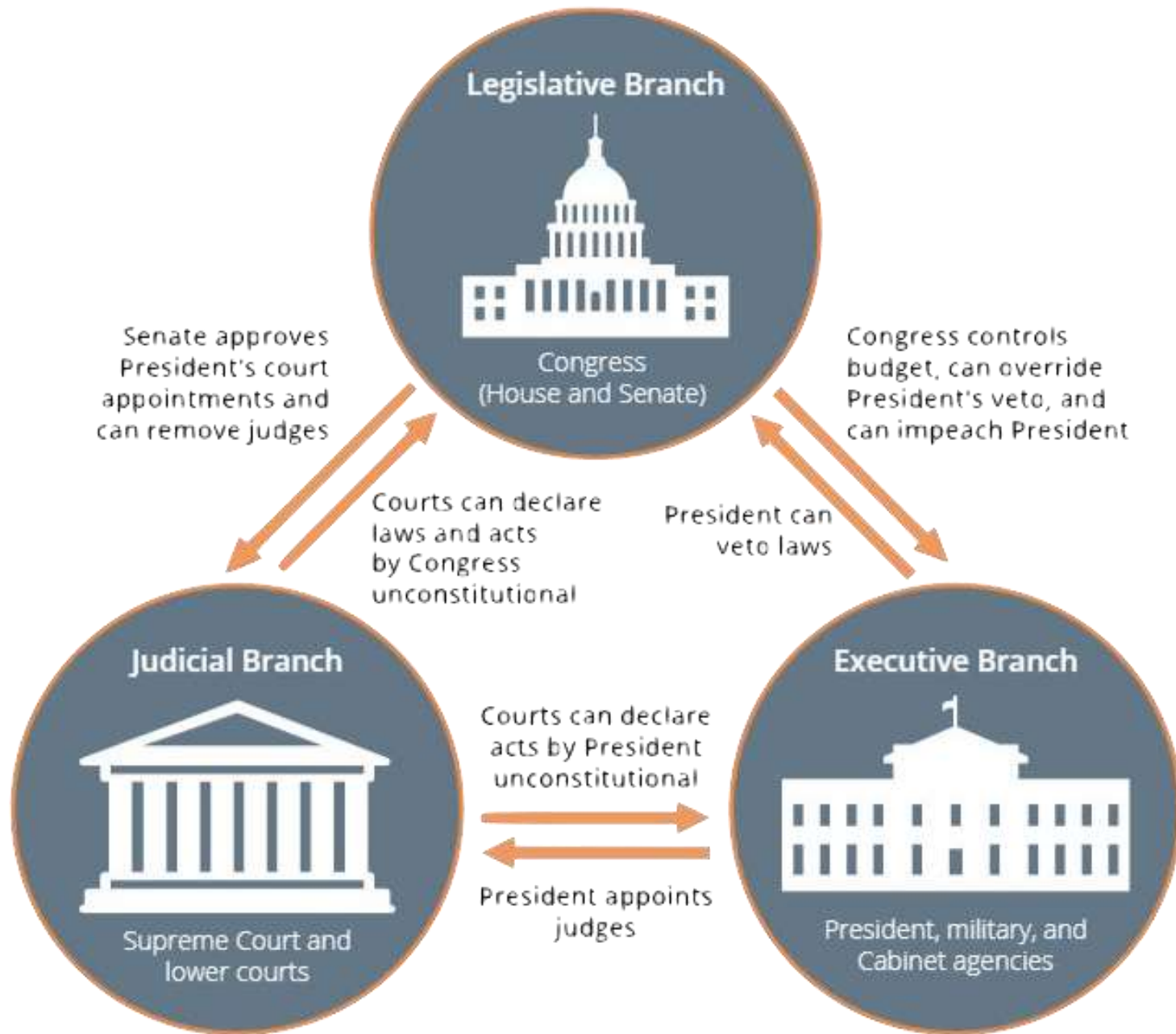


Parliament



Head of State





A Relationship of Checks and Balances

Historical Evolution



- 1787: American Constitution
 - Hamiltonian v. Jeffersonian visions of the President
 - Initial prevalence of Congress
 - Expansion of presidential powers during the 20th century

Historical Evolution



- Expansion of Presidentialism in Latin America since the 1830s
 - *Caudillismo* – e.g. *Porfirio Diaz in Mexico, Jose Gaspar de Francia in Paraguay*
 - Personalistic rule
 - Prevalence of the President over other branches of government

Historical Evolution

- Post WWII: decolonization of Africa
 - Nation-building and demands for development called for strong political leadership
 - E.G. Ghana



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 - E.G. Ghana
- Post 1989: Many post-Soviet republics
- E.G. Tajikistan, Uzbekistan

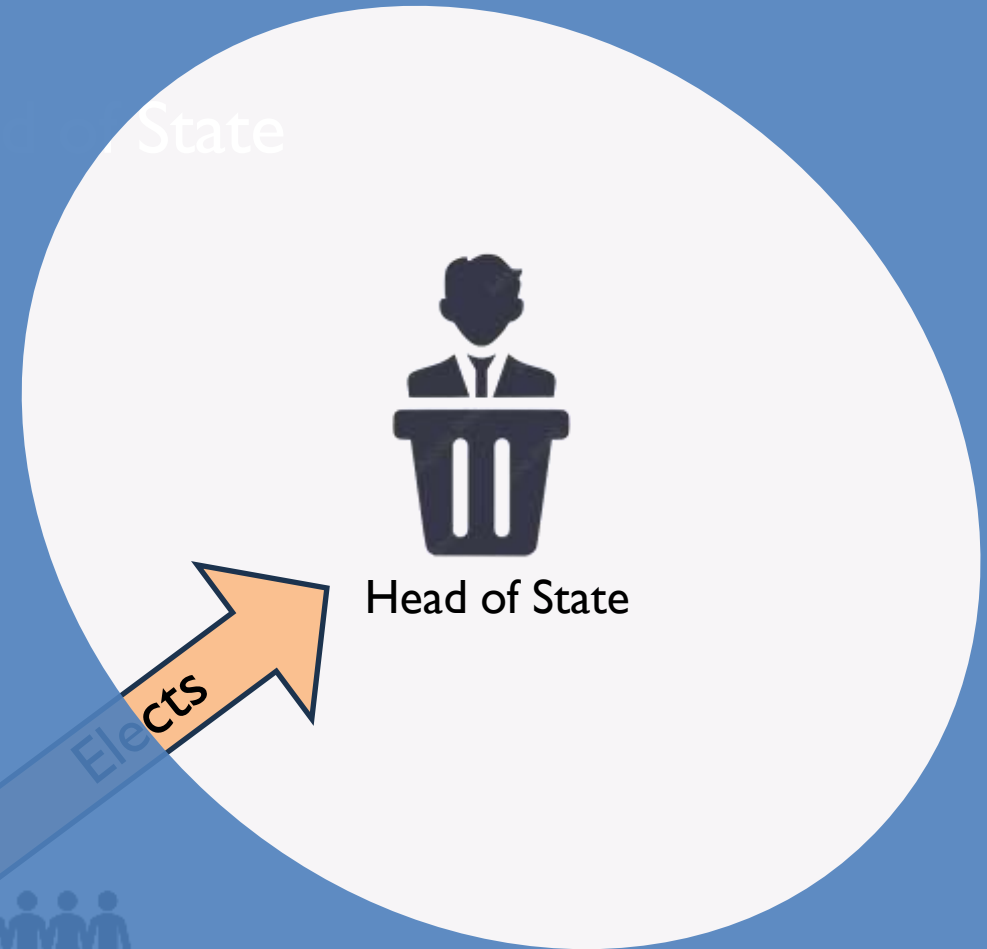
First Dispositional Property

Presidential Executive

Do we have both a Head of State and a Head of Government?

No

- The Head of State and the Head of Government are combined into one institution, the President.
- The President is completely separated from the legislature
 - Congress
- **No relationship of Confidence**
- Strong **Separation of Power**

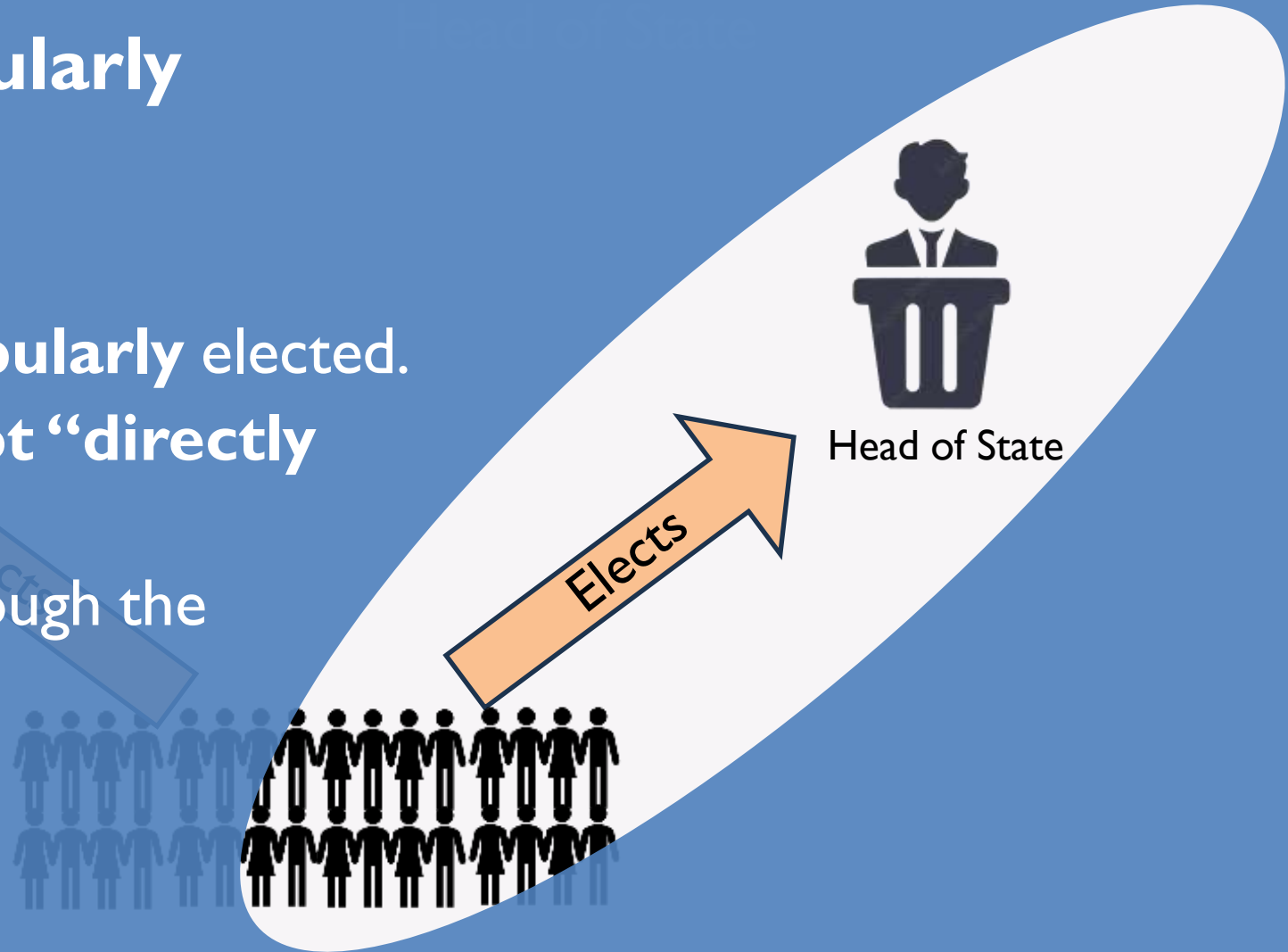


Second Dispositional Property

Presidential Executive

Is the HoS/HoG popularly elected? Yes

- Yes, The President is **popularly** elected.
- However, in the US is **not “directly elected”**
 - She/he is elected through the **electoral college**.

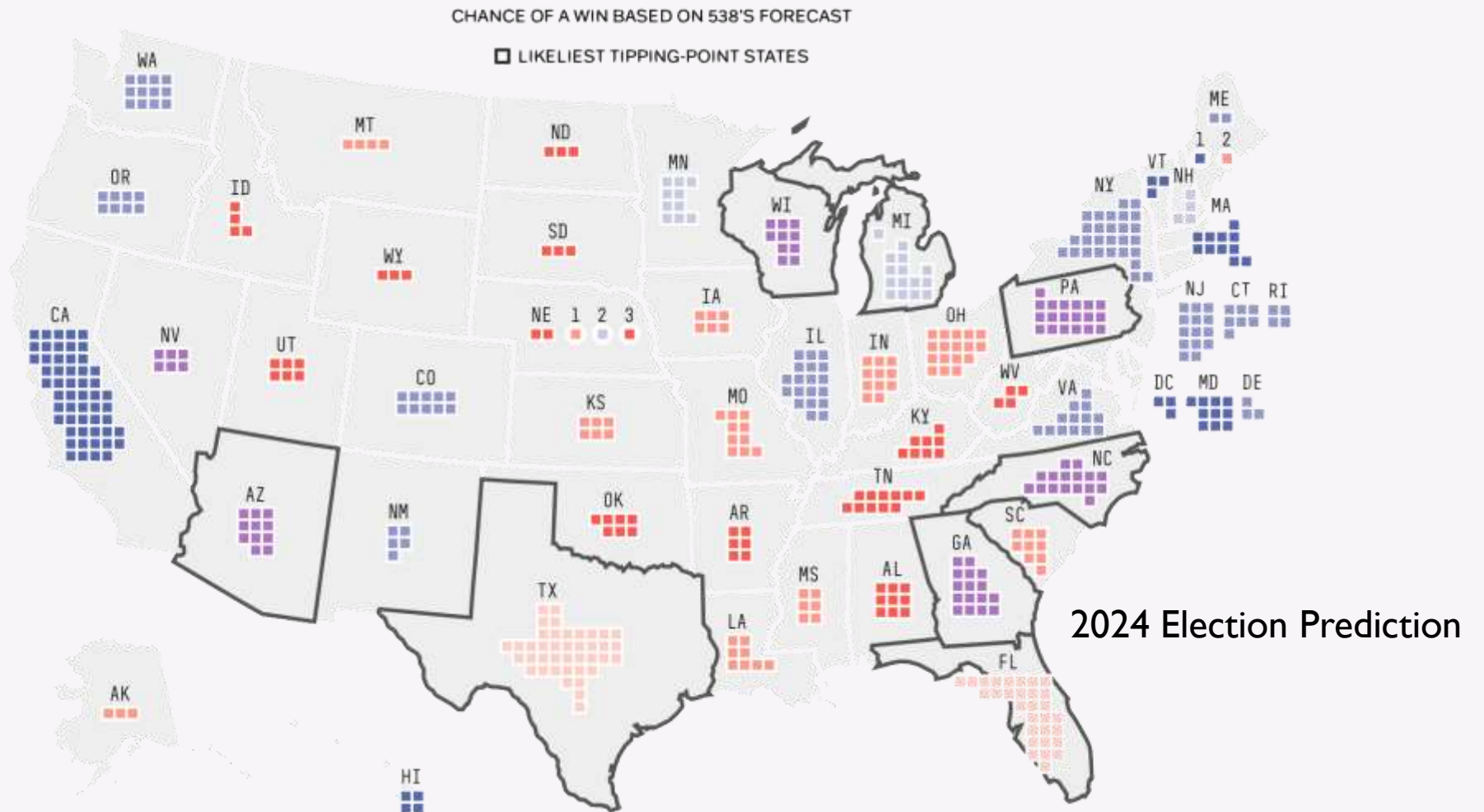


The Electoral College (US)

- An **indirect**, but **popular** election
 - Voters elect presidential electors who will elect the president.
 - In most states the presidential electors are not obliged by law to vote for the candidate of their party, but it is extremely rare that they do otherwise.
 - This is why we say it is a **popular election** – if a presidential candidate obtains the majority in the electoral college then it is a foregone conclusion that she will be elected President.
- Still, it is not a **direct election**
 - Art. II, Sect. 2 US Const. states that if no presidential candidate has the absolute majority (270 great electors) then it will be the House of Representatives that will choose the President.

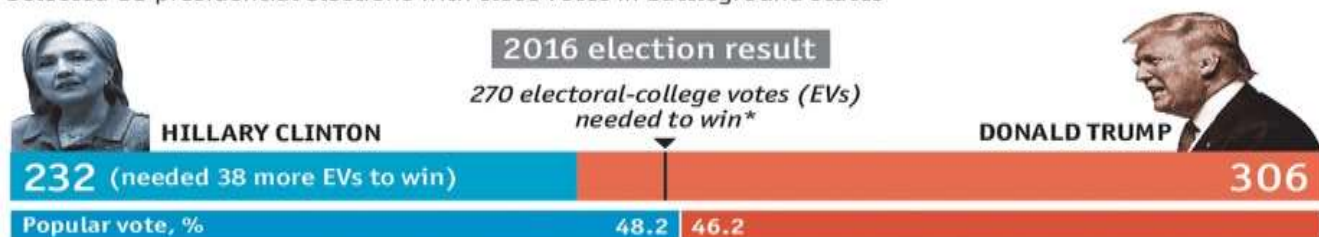
Majority: **270 votes**

N.B. most states adopt a Winner-Take-All system meaning they award all electors to the winning presidential candidate in that State



So close, and yet so far

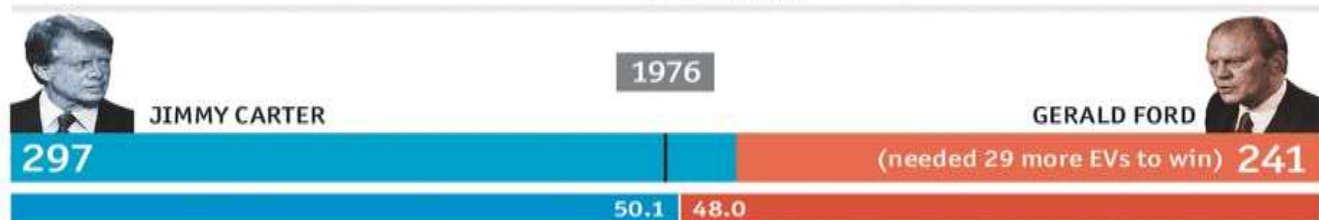
Selected US presidential elections with close votes in battleground states



Battleground states, number of votes that would have needed to switch

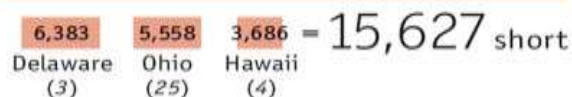


Florida (25) = 269 short



*Official tallies of electoral-college votes differ slightly because of "faithless" electors

Source: David Leip's Atlas of US presidential elections



Electoral college and the popular vote

[The Economist](#)

Third Dispositional Property

Presidential Executive

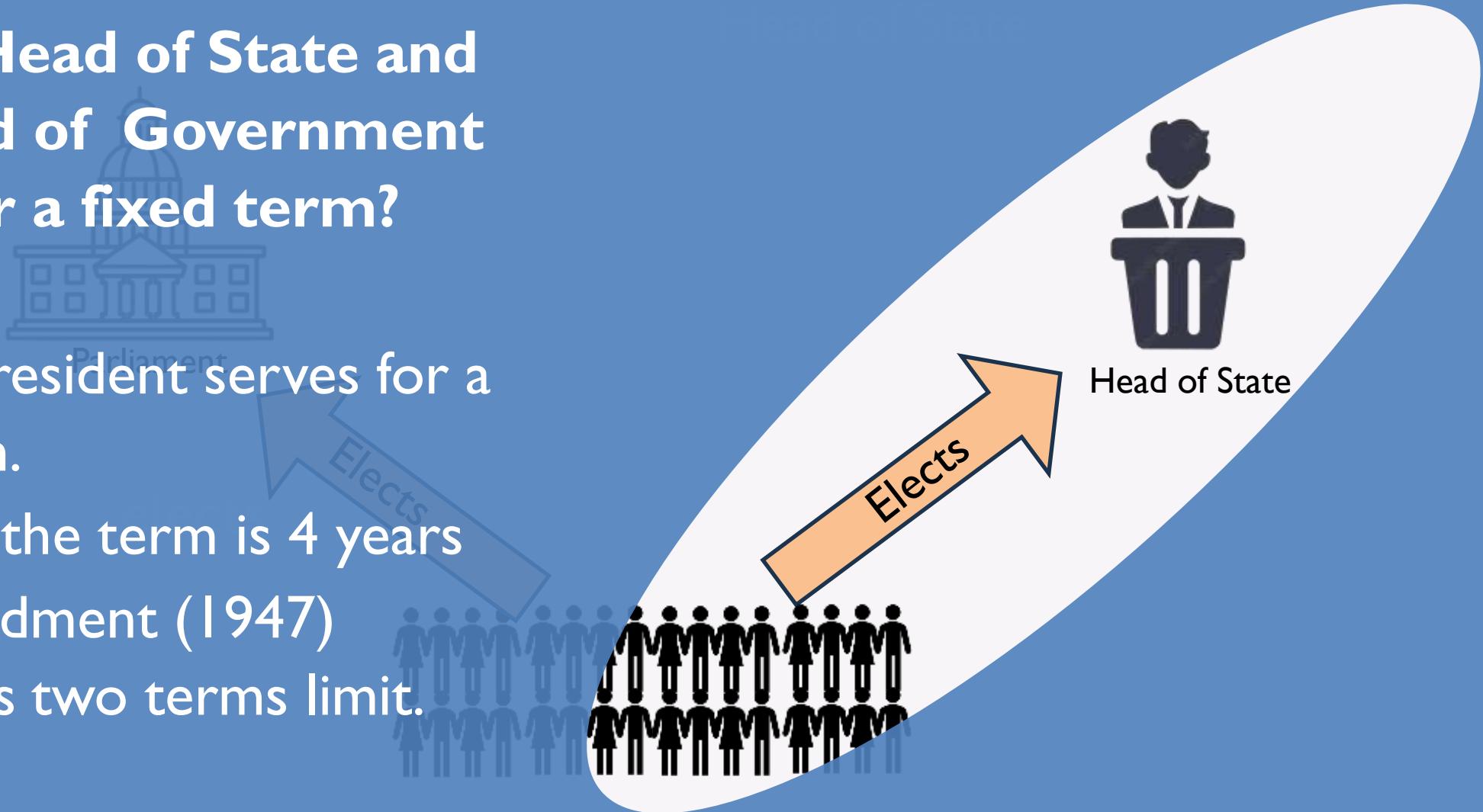
Do the Head of State and the Head of Government Serve for a fixed term?

Yes, the President serves for a fixed term.

In the US the term is 4 years

22^o Amendment (1947)

introduces two terms limit.



Powers of the President (US)

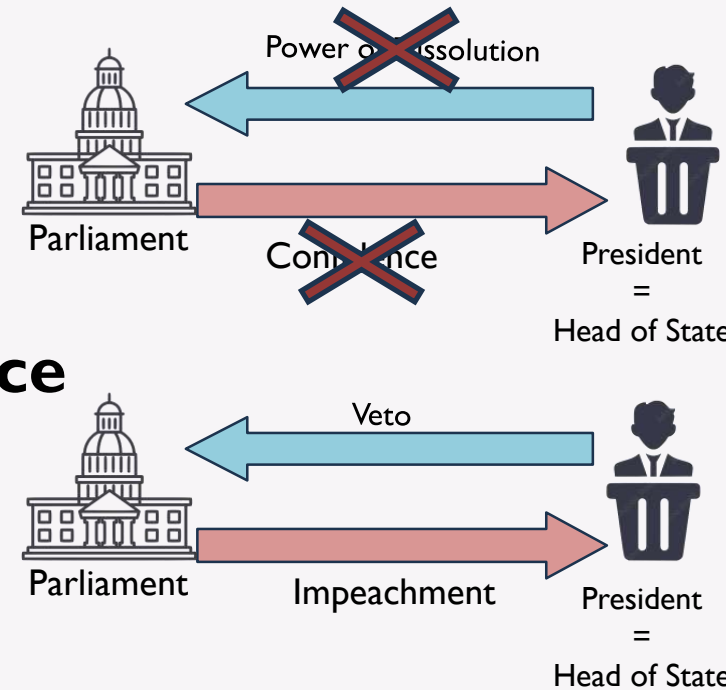
- A Veto Power over legislation 
- Commander-in-chief of the armed forces 
- Power to make treaties 
- Power to appoint ambassadors, officers and judges 
- Power to issue pardons 
- Power to call congress for special sessions 
- Power to initiate legislation 
 - Also in Presidential systems most legislation passed by Congress is proposed by the Executive



President
=
Head of State

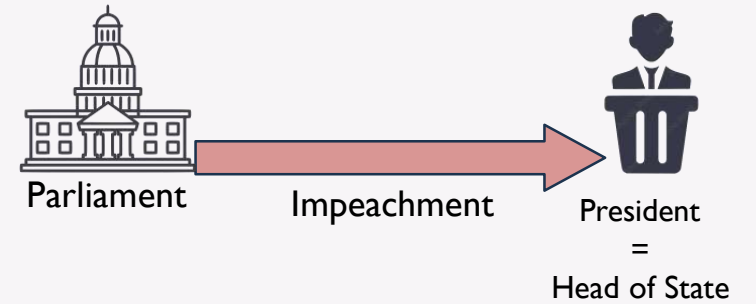
Relationship Parliament/Executive

- In presidential system there is **no relationship of confidence**
- The President is not responsible to Parliament
- However, most Presidential systems have introduced procedures to:
 - Increase the President's ability to influence legislative work
 - Increase the ability of the members of the legislature to influence the operation of government
 - E.G. **Veto Power, Impeachment**
- In Presidential systems Parliament can only **impeach the President**; it cannot vote a motion of no confidence and force the President to resign for political reasons.



Impeachment Procedure (US)

- Art. 2, Sec 4, US Constitution
 - Congress has power to impeach the president for “*treason, bribery or other high crimes and misdemeanours*”
 - **House of Representatives** acts as the prosecutor
 - **The Senate** acts as the **Jury**
 - A 2/3 vote is needed to remove the President



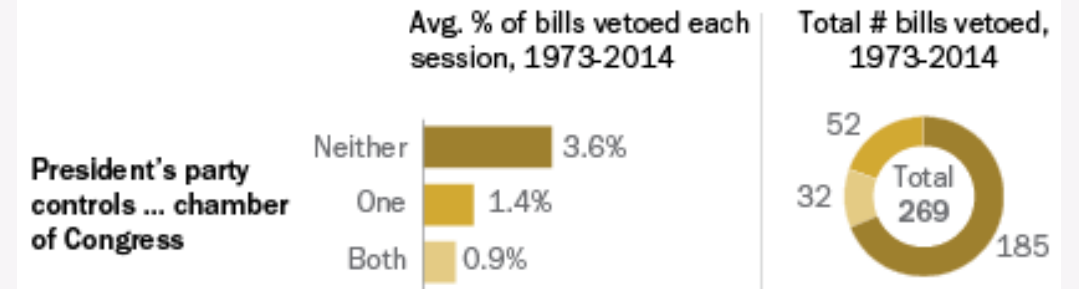
Veto Power (US)



- President normally has 10 days to sign a bill passed by Congress
- The President can veto a bill by sending it back to the chamber in which it originated with a message explaining the reasons for the veto
- A Veto can be **overridden** only by a 2/3 majority in both House and Senate

Presidential Vetoes More Likely Under Divided Government, But Still Rare

Presidential vetoes by control of Congress



Source: Library of Congress' THOMAS database, Pew Research Center reporting
PEW RESEARCH CENTER

Presidentialism

Virtues

1. Stability
2. Strong Checks and Balances
3. Clear Democratic Legitimation of the Executive
4. Governability

Perils

1. Inflexible Terms of Office
2. Political paralysis
 - a) Divided or Minority Governments
3. Winner-take-all approach – personalistic rule
4. Excessive Concentration of Power/ Abuse of Power

Parliamentarianism

Virtues

1. Ease in passing laws
 - a) Because of strong majorities in Parliament
2. Safeguard against concentration of power
3. Safeguard against personalistic rule
4. Better representation of plurality of interests through coalition governments

Perils

1. Inadequate separation of Power
 - a) Parliament provides no adequate check to the government
2. Inefficiency and conflict within government
3. Imperfect democratic legitimation of the executive
4. Inefficiency and conflict within government